

(47)

Tentative Ruling

Re: **Matthew Lieb v. Elizabeth Flores**
Superior Court Case No. 24CECG02305

Hearing Date: August 6, 2026 (Dept. 501)

Motions: Plaintiff's Motion for Leave to Amend Complaint

Tentative Ruling:

To find Plaintiff's motion for leave to amend the complaint is moot.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff, Matthew Lieb, ("Lieb") filed the motion to amend his complaint against defendant Lyft, Inc. ("Lyft") on March 10, 2026. On April 27, 2026, Lieb dismissed his claims against Lyft on April 27, 2026.

Accordingly, Lieb's motion seeking leave to file a first amended complaint is moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Marvin Gonzalez Colindres v. American Honda Motor Co., Inc.**

Superior Court Case No. 25CECG01016

Hearing Date: August 6, 2026 (Dept. 501)

Motions(x2): Defendant's Motion to Compel Compliance with the December 11, 2025 Court Order
Defendant's Motion to Compel Production of Plaintiff's Vehicle for Inspection

Tentative Ruling:

To find defendant's motion to compel compliance with the December 11, 2025 Court Order is moot.

To grant defendant American Honda Motor Co., Inc.'s motion to compel plaintiff Marvin Gonzales Colindres to present his 021 Honda Pilot, VIN: 5FNYP5H21MB030555, within 14 days of service of the order by the clerk.

To grant defendant American Honda Motor Co., Inc.'s motion for sanctions in the reduced amount \$1,285. Plaintiff Marvin Gonzales Colindres, and plaintiff's counsel of record, Quill and Arrow, LLP, shall make payment to AHM's counsel of record at Wilson Turner Losmo LLP, within 30 days of service of the order by the clerk.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Compliance with December 11, 2025 Court Order

Defendant American Honda Motor Co., Inc. ("AHM" or "defendant") filed this motion to compel plaintiff, Marvin Gonzales Colindres ("Colindres" or "plaintiff") to comply with the December 11, 2025 Court Order.

AHM makes this motion, in accordance with the December 11, 2025 Court Order, for Colindres to produce further responses without objections to Special interrogatories, Form Interrogatories, and Request for Production, Set One, and failed to pay \$1,990 in monetary sanctions as ordered in the Court's order. However, this motion to compel compliance with respect to production is moot as Colindres has already provided the requested documents. (Cardenas Decl., Ex. 1.)

The only item outstanding from the December 11, 2025 Court Order is payment of sanctions. In Colindres' opposition, filed June 12, 2026, their counsel represented that they mailed out the sum on June 12, 2026. (Cardenas Decl. Ex. 2.) Nevertheless, AHM's counsel

represents that as of June 16, 2026, AHM's counsel has still not received the amount. (Ucciferri Decl., ¶¶ 2-3.)

Even assuming *arguendo* that AHM's counsel still has not received the amount, failure to pay monetary sanctions is not a basis and does not warrant additional sanctions. (See e.g., *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615 ("Newland") [holding that "terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified."].) As noted by the Court of Appeal in *Newland*, "many attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws." (*Ibid.*) Monetary sanctions "have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (*Ibid.*)

Accordingly, this motion is moot.

Production of Plaintiff's Vehicle for Inspection

AHM originally noticed the inspection of Colindres' 2021 Honda Pilot, VIN: 5FN9F5H21MB030555 ("Subject Vehicle") on May 14, 2025, to proceed on June 26, 2025. (Sadanaga Decl., ¶12, Ex. A). On June 20, 2025, Plaintiff served untimely Objections to AHM's Demand for Vehicle Inspection. Plaintiff's objection stated Plaintiff's counsel will not be appearing for the vehicle inspection as presently noticed. "Plaintiff requests that Defendant and Defendant's counsel consider the following alternative dates: January 12, 2026, January 14, 2026, or January 15, 2026." (Sadanaga Decl., ¶ 3, Ex. B). On June 30, 2025, AHM's counsel stated "we have received Plaintiff's objections to AHM's demand for vehicle inspection. Based on Plaintiff's objection, we will take January 15, 2026. We will send amended notice shortly." (Sadanaga Decl. ¶ 4, Ex. C).

On September 19, 2025, AHM served an Amended Demand for Vehicle Inspection to be conducted at Selma Honda located at 2705 Auto Mall Dr., Selma, CA 93662 on January 15, 2026. (Sadanaga Decl., ¶ 5, Ex. D).

On January 9, 2026, Plaintiff once again objected to AHM's Amended Demand for Vehicle Inspection. Plaintiff's objection stated Plaintiff's counsel will not be "Plaintiff requests that Defendant meet and confer with Plaintiff's counsel in order to schedule the vehicle inspection on a mutually agreeable date." (Sadanaga Decl. ¶ 6, Ex. E). On January 9, 2026, AHM's counsel stated, "AHM has received Plaintiff's objections to the amended demand for vehicle inspection. This date was previously agreed upon on June 30, 2025. In fact, it was a date that Plaintiff offered in its objection to the original demand for vehicle inspection. Nonetheless, please provide a date for the vehicle inspection to be completed no later than 1/19/26." (Sadanaga Decl. ¶ 7, Ex. F). This email was ignored. (*Id.*)

A party may inspect land or other property in possession, custody, or control of any other party to the action. (Code Civ. Proc., §2031.010, subd. (a).) A party may move to compel further responses to an inspection demand if the party believes the initial responses contain (1) an incomplete statement of compliance; (2) an inadequate, incomplete, or evasive representation of inability to comply; or (3) an objection that is too general or lacks merit. (Code Civ. Proc., § 2031.310, subd. (a).)

